

Rajasthan Drugs (Control) Ordinance, 1949

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State of Rajasthan - Act

Rajasthan Drugs (Control) Ordinance, 1949

RAJASTHAN

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Rajasthan Drugs (Control) Ordinance, 1949

Act 31 of 1949

Published on 1 January 1949

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Rajasthan Drugs (Control) Ordinance, 1949

(Ordinance No. 31 of 1949)

RJ73

[Promulgated by His Highness the Rajpramukh on 3rd day of October, 1949]

An Ordinance to provide for the control of the sale, supply and distribution of drugs.

Where it is expedient to provide for the control of the sale, supply and distribution of drugs;

Now Therefore, in exercise of the powers conferred by paragraph (3) of Article X of the Covenant, High Highness and the Rajpramukh is pleased to make and promulgate the following Ordinance:.

1.

Short title, extent and commencement.

(1)

This Ordinance may be called the Rajasthan Drugs (Control) Ordinance, 1949.

(2)

[It extends to the whole of the State of Rajasthan.]

[This Ordinance also extends to the whole of the State of Rajasthan including the Abu, Ajmer and Sunel areas w.e.f. 1.9.1957 i.e. date of enforcement of Rajasthan Act 27 of 1957.]

(3)

It shall come into force at once.

2.

Interpretation.

(1)

In this Ordinance, unless there is anything repugnant in the subject or context.-

(a)

"dealer" means a person carrying on, either personally or through any other person, the business of selling any drug, whether wholesale or retail;

(b)

"drug" means any drug as defined in clause (b) of Section (3) of the Drugs Act, 1940 (XXIII of 1940) of the Central Legislature, in respect of which a declaration has been made under section 3;

(c)

"offer for sale" includes a reference to an intimation by a person of the price proposed by him for a sale of any drug, made by the publication of a price list, by exposing the drug for sale in association with a mark indicating price, by the furnishing of a quotation or otherwise howsoever;

(d)

"producer" includes a manufacturer, and

(e)

[.....]

[Deleted by Rajasthan Act 27 of 1957.]

(2)

A drug shall be deemed to be in the possession of a person.-

(i)

when it is held on behalf of that person by another person [or when held by that person on behalf of another person;]

[Inserted by Rajasthan Act 15 of 1950.]

(ii)

notwithstanding that it is mortgaged to another person.

3.

Drugs to which this Ordinance applies.

- The [State Government]

[Substituted by Rajasthan Act 27 of 1957.]

may by notification in the [Official Gazette]

[Substituted by Rajasthan Act 15 of 1950.]

declare any drug to be a drug to which this ordinance shall apply.

4.

Fixing of maximum prices and maximum quantities which may be held or sold.

(1)

The [State Government]

[Substituted by Rajasthan Act 27 of 1957.]

may, by notification in the [Official Gazette]

[Substituted by Rajasthan Act 15 of 1950.]

fix in respect of any drug.-

(a)

the maximum price or rate which may be charged by a dealer or producer;

(b)

the maximum quantity which may at any one time be possessed by a dealer or producer;

(c)

the maximum quantity which may in any one transaction be sold to any person. (2) The prices or rates and the quantities fixed in respect of any drug under this section may be different in different localities or for different classes of dealers or producers.

5.

Restrictions on sale etc. where maximum is fixed under section 4.

- No dealer or producer shall.-

(a)

sell, agree to sell, offer for sale or otherwise dispose of to any person any drug for a price or at a rate exceeding the maximum fixed by notification under clause (a) of sub-section (1) of Section 4;

(b)

have in his possession at any one time a quantity of any drug exceeding the maximum fixed by notification under clause (b) of sub-section (1) of Section 4; or

(c)

sell, agree to sell or offer for sale to any person in any one transaction, a quantity of any [drug]

[Substituted by Rajasthan Act 15 of 1950.]

exceeding the maximum fixed by notification under clause (c) of sub-section (1) of Section 4.

6.

General limitation on quantity which may be possessed at one time.

(1)

No person shall have in his possession at any one time a greater quantity of any drug to which this section applies than the quantity necessary for his reasonable needs.

(2)

This section shall apply only to such drugs as the Government may, by order published in the [Official Gazette]

[Substituted by Rajasthan Act 15 of 1950.]

, specify for the purpose

Provided that nothing contained in this section shall apply to a dealer or producer in respect of any drugs sold or produced by him.

7.

Duty to declare possession of excess stocks.

- Any person having in his possession a quantity of any drug exceeding that permitted by or under this Ordinance shall forthwith report the fact to the [State Government]

[Substituted by Rajasthan Act 15 of 1950.]

or any officer empowered in this behalf by the [State Government]

[Substituted by Rajasthan Act 15 of 1950.]

, and shall take such action as to the storage, distribution or disposal of the excess quantity as the [State Government]

[Substituted by Rajasthan Act 15 of 1950.]

, may direct.

8.

Refusal to sell.

- No dealer or producer shall, unless previously authorised to do so by the [State Government]

[Substituted by Rajasthan Act 15 of 1950.]

without sufficient cause refuse to sell to any person any drug within the limits as to quantity, if any, imposed by this Ordinance.

Explanation.— The possibility of expectation of obtaining a higher price for a drug at a later date, shall not be deemed to be sufficient cause for the purpose of this section.

9.

Cash memorandum to be given of certain sales.

(1)

Every dealer or producer when selling any drug for cash shall, if the amount of the purchase is five rupees or more, in all

cases, and, if the amount of the purchase is less than five rupees, when so requested by the purchaser a cash memorandum containing particulars of the transaction.

(2)

The [State Government]

[Substituted by Rajasthan Act 15 of 1950.]

may, by notification in the [Official Gazette]

[Substituted by Rajasthan Act 27 of 1957.]

, prescribe the particulars to be contained in any such cash memorandum.

(3)

The [State Government]

[Substituted by Rajasthan Act 15 of 1950.]

may, by notification in the [Official Gazette]

[Substituted by Rajasthan Act 27 of 1957.]

exempt specified areas, classes of dealers or producers, or classes of drugs from the operation of this section,

10.

Marking of prices and exhibiting price list.

(1)

[State Government]

[Substituted by Rajasthan Act 15 of 1950.]

may direct dealers or producers in gene or any dealer or producer in particular, to mark any drug exposed or intended for sale with the sale prices or to exhibit on the premises a price list of drugs held for sale, [and the quantities of such drugs in his possession and may further give directions as to the manner in which any such direction as aforesaid is to be carried out.]

[Inserted by Rajasthan Act 15 of 1950.]

(2)

No dealer shall destroy, efface or alter [or cause to be destroyed, effaced or altered]

[Inserted by Rajasthan Act 15 of 1950.]

any label or mark affixed to a drug and indicating the price marked by a producer.

11.

Obligation to state price separately on composite offer.

- Where a dealer or producer makes an offer to enter into a transaction for a consideration to be given as a whole in respect both of a sale of any drug and of some other matter, the dealer or producer making the offer shall State in writing the price which he assigns to that drug, if he is required to do so by any person to whom the offer is made, and the offer shall be deemed for the purposes of this Ordinance to be an offer to sell that drug at the price so stated.

12.

[Prohibition or regulation of the disposal of drugs.]

[Substituted by Rajasthan Act 15 of 1950.]

- If in the opinion of the [State Government]

[Substituted by Rajasthan Act 27 of 1957.]

it is necessary or expedient so to do, it may, by order in writing.-

(a)

prohibit the disposal of any drug except in such circumstances and under such conditions as may be specified in the order;

(b)

direct the sale of any drug to any such dealer or class of dealers and in such quantities as may be specified in the order, and make such further orders as appear to it to be necessary or expedient in connection with any order issued under this section.

13.

Penalties.

(1)

Whoever contravenes any of the provisions of this Ordinance or [fails to comply with any direction]

[Substituted by Rajasthan Act 15 of 1950.]

made under authority conferred by this Ordinance, shall be punishable with imprisonment for a term which may extend to three years or with fine or with both.

(2)

A Court convicting any person of an offence punishable under this Ordinance may order that the whole or any part of the stock of drugs in respect of which the offence was committed shall be forfeited to the [State Government]

[Substituted by Rajasthan Act 27 of 1957.]

(3)

It shall be a defence for a person charged with a contravention of any of the provisions of this section to prove that, in relation to the matter in respect of which he is charged, he acted in the course of his employment as a servant or agent of another person on the instructions of his employer or of some other specified person.

14.

Offences by corporations.

- Where a person committing an offence punishable under this Ordinance is a company or an association or a body of persons, whether incorporated or not, every director, manager, secretary, agent or other officer or person concerned with the management thereof, shall, unless he proves that the offence was committed without his knowledge or that he has exercised all due diligence to prevent its commission, be deemed to be guilty of such offence.

15.

Procedure.

(1)

No person other than a Police Officer of or above the rank of an Inspector of Police or an Officer not below the rank of an Inspector of Police authorised in this behalf by the Government by notification in the [Official Gazette]

[Substituted by Rajasthan Act 15 of 1950.]

, shall investigate any offence under this Ordinance.

(2)

No prosecution for any offence punishable under this Ordinance shall be instituted except with the previous sanction of the District Magistrate.

16.

Powers of search and seizure.

- Any person competent to investigate any offence under this Ordinance may search any place in which he has reason to believe that an offence under this Ordinance has been, or is being committed, and take possession of any stock of drugs in respect of which the offence has been or is being committed [and the provisions of the Code of Criminal Procedure, 1898]

[Now Criminal Procedure Code, 1973 (2 of 1974).]

, of the Central Legislature [.....]

[Deleted by Rajasthan Act 15 of 1950.]

shall, so far as may be applicable, apply to any search or seizure under this Act as they apply to any search or seizure made under the authority of a warrant issued under section 98 of that Code.]

17.

Power to make rules.

(1)

The [State Government]

[Substituted by Rajasthan Act 27 of 1957.]

may make rules to carry out the purposes of this Ordinance.

(2)

In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely.-

(a)

the maintenance by dealers and producers generally, or by any dealer or producer in particular, of records of all sale and purchase transactions made by them.

(b)
the furnishing of any [such]
[Inserted by Rajasthan Act 15 of 1950.]
information as may be required with respect to the business carried on by any dealer or producer.

(c)
the inspection of any books of accounts or other documents belonging to or under the control of any dealer or producer.

(d)
[...]
[Deleted by Rajasthan Act 15 of 1950.]

18.
Protection of action taken in good faith.

- No suit, prosecution or other legal proceeding shall lie against any person for anything in good faith done or intended to be done under this Ordinance.

19.
Saving of other laws.

- The provisions of this Ordinance shall be in addition to and not in derogation of any other law for the time being in force regulating any of the matters dealt with in this Ordinance.

20.
Delegation of Powers.

- The [State Government]
[Substituted by Rajasthan Act 27 of 1957.]
may, by notification in the [Official Gazette]
[Inserted by Rajasthan Act 15 of 1950.]
direct that all or any of its powers under this Ordinance shall, subject to such conditions, if any, as may be specified in the direction, be exercisable also by such officer or authority subordinate to the [State Government]
[Substituted by Rajasthan Act 27 of 1957.]
as may be specified in the direction.

21.
[.....]

[Deleted by Rajasthan Act 15 of 1950.]
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